

HOMETOWN MEADOWS

Residential Lease Agreement

121 Smith Lane, Nashville, Arkansas 71852 | Office (870) 557-5751

1. PARTIES

This Lease is between **Kubera Homes LLC, doing business as Hometown Meadows** (the "Community"), and the following resident(s), each of whom signs below (together, the "Resident"):

Resident 1: _____ Resident 2: _____

Every adult who signs is jointly and severally responsible for the full rent and every obligation in this Lease.

2. THE HOME AND LOT

Lot number: _____ at Hometown Meadows, 121 Smith Lane, Nashville, Arkansas 71852. Check one:

- ☐ **Home and Lot.** The Community owns the home on this lot and leases both the home and the lot to Resident. Bedrooms: _____ Bathrooms: _____
- ☐ **Lot Only.** Resident owns the manufactured home on this lot and leases only the lot from the Community. Home year/make: _____ Serial/VIN: _____. Section 14 applies.

Resident also has shared use of the community's common areas — the pond, playground, dog park, laundry room, and roads — subject to the Community Rules (Exhibit A).

3. TERM

This Lease starts on _____ and ends on _____ (the "Term"). If neither party gives at least 30 days' written notice before the Term ends, this Lease continues month-to-month on the same terms until either party gives at least 30 days' written notice ending it on the last day of a calendar month.

4. RENT

Item	Amount
Monthly rent (total)	\$ _____
Housing-assistance portion (if any, see Section 7)	\$ _____
Resident portion due each month	\$ _____
First month (prorated or move-in special)	\$ _____
Pet rent (\$25 per pet, see Section 11)	\$ _____

- Due date.** Rent is due in advance on the 1st day of each month.
- Grace period and late fee.** Rent paid by the end of the 5th is on time. If any part of the Resident portion is unpaid at the start of the 6th, a \$75.00 late fee is added. Entering a payment plan does not cancel a late fee that has already posted.
- How to pay.** Through the Hometown Meadows community portal; by money order or cashier's check delivered to the community office; or by mail to PO Box 5675, El Dorado Hills, CA 95762. The Community does not accept cash unless the office agrees in writing and issues a receipt.
- Returned payments.** Any payment returned or reversed carries a \$35.00 fee, and the Community may require certified funds after that.
- Partial payments.** Accepting a partial payment does not waive the balance, any late fee, or any notice already given.

- **Order applied.** Payments are applied first to fees and charges, then to the oldest rent owed.

5. RENT CHANGES

During the fixed Term, rent stays as stated in Section 4. After the Term, the Community may change rent with at least 30 days' written notice. For assisted tenancies, rent changes follow the housing authority's process in Section 7.

6. SECURITY DEPOSIT

Resident pays a security deposit of \$_____ before move-in. The deposit is not rent and may not be used as the last month's rent. The Community will hold and return the deposit as Arkansas law requires (Ark. Code Ann. § 18-16-301 et seq.): within 60 days after Resident moves out and returns possession, the Community will return the deposit, less any lawful deductions for unpaid rent, fees, and damage beyond normal wear and tear, along with a written itemized list of deductions mailed to Resident's forwarding address.

7. HOUSING ASSISTANCE

If any part of the rent is paid by a public housing authority under the Housing Choice Voucher (Section 8) program or another assistance program, the HUD Tenancy Addendum is attached and made part of this Lease. If anything in this Lease conflicts with the HUD Tenancy Addendum, the Addendum controls. Resident is responsible only for the Resident portion set by the housing authority, and must report changes in household income or members to the housing authority as the program requires. If the assistance contract ends, Resident becomes responsible for the full monthly rent as permitted by program rules.

8. WHO LIVES HERE

Only the Residents who sign this Lease and these occupants may live in the home:

_____. A guest may stay no more than 14 days in any 6-month period without the Community's written approval. Any adult who wants to live here must apply, be approved, and sign this Lease.

9. UTILITIES

Utility	Paid by Community	Paid by Resident
Water	☐	☐
Sewer / septic	☐	☐
Trash	☐	☐
Electric	☐	☐
Gas / propane	☐	☐
Internet / cable	☐	☐

Resident must put any Resident-paid utility in Resident's own name by the start date and keep it on. Resident pays any deposit the utility company requires.

10. USE OF THE HOME AND COMMUNITY

The home is for private residential use only. Resident, household members, and guests must follow the Community Rules (Exhibit A), which the Community may update with 30 days' written notice. No illegal activity of any kind is allowed in the home, on the lot, or anywhere in the community; illegal activity is a

material breach of this Lease. No business that brings customers, deliveries, or signage into the community is allowed without written approval.

11. PETS AND ASSISTANCE ANIMALS

No animals are allowed without a signed Pet Addendum. Each approved pet requires a \$50 pet deposit and \$25 per month in pet rent. Residents are responsible for any damage, noise, or waste their pets cause, and dogs must be leashed outside the home except inside the dog park. Assistance animals for a person with a disability are not pets: no pet deposit or pet rent applies, and requests are handled under fair housing law.

12. MAINTENANCE AND REPAIRS

Home and Lot leases. The Community keeps the home fit to live in and keeps its structure, roof, plumbing, electrical, heating, and water heater in working order as Arkansas law requires. Resident keeps the home clean and safe, replaces light bulbs and HVAC filters, keeps drains clear, and promptly reports problems.

Lot Only leases. Resident maintains the home and everything attached to it, including skirting, steps, decks, tie-downs, and the utility lines from the connection point to the home. The Community maintains the roads, common areas, and utility lines up to the lot connection point.

All leases. Resident keeps the lot neat, mowed, and free of trash and junk. Report repairs through the community portal or by calling the office at (870) 557-5751. Report emergencies — fire, gas smell, flooding, no heat in freezing weather, sparking wires — immediately by phone. Resident pays for damage caused by Resident, household members, guests, or pets beyond normal wear and tear.

Resident must keep smoke alarms in place and working, test them monthly, replace batteries, and report any alarm that does not work. Resident may not disconnect or remove any smoke or carbon monoxide alarm.

13. ENTRY AND INSPECTIONS

The Community may enter the home or lot at reasonable times, with at least 24 hours' notice, to inspect, make repairs, show the home, or confirm Lease compliance. The Community conducts routine inspections about once a quarter. In an emergency, the Community may enter without notice. Resident may not change or add locks without written approval and must give the office a key to any new lock.

14. RESIDENT-OWNED HOMES (LOT ONLY)

- Resident must keep the home properly installed, anchored, and skirted, and keep it insured for at least its replacement value plus liability coverage of at least \$100,000, with proof given to the office each year.
- No home may be moved onto or off the lot, and no additions, carports, sheds, or decks built, without the Community's written approval.
- If Resident sells the home and the buyer wants it to stay on the lot, the buyer must apply, be approved, and sign a new lease before taking possession. A sale does not transfer this Lease.
- When this Lease ends, Resident must remove the home and personal property within the time the Community allows in writing, or the Community may treat them as abandoned and handle them as Arkansas law permits.

15. INSURANCE AND LIABILITY

The Community's insurance does not cover Resident's belongings or Resident's liability. The Community strongly recommends renter's insurance. Except where caused by the Community's negligence, the Community is not responsible for loss or damage to Resident's property or for injury to Resident or guests.

16. CHANGES TO THE HOME

Resident may not paint, remodel, install fixtures, satellite dishes, fences, pools, or trampolines, or make any other change to a Community-owned home or lot without written approval. Approved changes stay with the home unless the Community says otherwise in writing.

17. DEFAULT AND ENDING THE LEASE EARLY

Resident is in default if Resident fails to pay rent or any charge when due, breaks any other term of this Lease or the Community Rules, gives false information on the application, or abandons the home. If Resident defaults, the Community may give written notice and end Resident's right to possession, recover rent and charges owed, and pursue any other remedy allowed by Arkansas law. Notices to vacate will be delivered as Arkansas law requires, including by posting on the front door of the home.

If Resident stays after this Lease ends without the Community's written consent, Resident owes rent for each day held over and any damages Arkansas law allows.

18. MOVING OUT

Resident must give at least 30 days' written notice before moving out, return all keys, leave the home and lot clean and empty, and give the office a forwarding address in writing. The Community will compare the home's condition to the move-in condition checklist (Exhibit C). Property left behind after Resident has moved out or abandoned the home may be removed and handled as Arkansas law permits.

19. NOTICES

Notices to the Community go to the community office at 121 Smith Lane, Nashville, Arkansas 71852, or by email to the address the office provides. Notices to Resident may be hand-delivered, posted on the front door, mailed to the home, or sent by email or through the community portal, except where Arkansas law requires a specific method.

20. TEXT MESSAGE AND EMAIL CONSENT

Resident agrees that the Community and its staff may contact Resident by phone, email, and text message (including automated text messages and reminders) about rent, payments, maintenance, community notices, and this Lease, at the phone numbers and email addresses below. Message frequency varies. Message and data rates may apply. Resident may stop text messages at any time by replying STOP, or get help by replying HELP. Consent to texts is not a condition of renting; Resident will still receive required notices by other methods.

Mobile number(s): _____ Email(s): _____

☐ I agree to receive text messages. Initials: _____

21. REQUIRED DISCLOSURES

- **Lead-based paint.** If the home was built before 1978, the federal Lead-Based Paint Disclosure (Exhibit B) and the EPA pamphlet "Protect Your Family From Lead in Your Home" are provided and acknowledged before signing.
- **Owner and manager.** The owner of the community is Kubera Homes LLC. The person authorized to manage the community and receive notices is the community manager at the office address above.
- **Equal Housing Opportunity.** Hometown Meadows does not discriminate on the basis of race, color, religion, sex, national origin, disability, or familial status, and accepts Housing Choice Vouchers.

22. GENERAL TERMS

- This Lease, its exhibits and addenda, and the Community Rules are the entire agreement. Any change must be in writing and signed by both parties.
- If any part of this Lease is found unenforceable, the rest stays in effect.
- The Community's failure to enforce any term is not a waiver of that term.
- Resident may not sublet or assign this Lease without written consent.
- This Lease is governed by Arkansas law.
- Electronic signatures and signed copies count as originals.

ATTACHED EXHIBITS AND ADDENDA (CHECK ALL THAT APPLY)

☐ Exhibit A — Community Rules ☐ Exhibit B — Lead-Based Paint Disclosure ☐ Exhibit C — Move-In Condition Checklist ☐ HUD Tenancy Addendum ☐ Pet Addendum ☐ Payment Plan Agreement

SIGNATURES

By signing, each Resident confirms they have read this Lease and the Community Rules, received a copy, and agree to them.

RESIDENT 1

Signature: _____ Date: _____

Name: _____

RESIDENT 2

Signature: _____ Date: _____

Name: _____

COMMUNITY: Kubera Homes LLC, d/b/a Hometown Meadows

Signature: _____ Date: _____

Name: Alonzo Jefferson

Title: Community Manager, Authorized Agent

EXHIBIT A — HOMETOWN MEADOWS COMMUNITY RULES

Hometown Meadows is a family community. These rules keep it safe, quiet, and good-looking for everyone.

- **Quiet hours.** 10:00 PM to 7:00 AM every night. Keep music, TVs, and gatherings at a level neighbors cannot hear.
- **Driving.** Speed limit is 10 MPH everywhere in the community. Watch for children, pets, and walkers.
- **Parking.** Park only in your driveway or assigned spots — no parking on lawns or in front of a neighbor's home. Vehicles must be running, licensed, and registered. No repairs beyond minor maintenance. Inoperable vehicles may be towed after 7 days' written notice. No RVs, boats, trailers, or commercial trucks without approval.
- **Trash.** Bag all trash and use the provided containers. No dumping, burning, or stacking trash outside the home.
- **Your lot.** Keep grass mowed, yards free of junk, appliances, and tires, and porches neat. Only outdoor furniture outside.
- **Pond.** Fishing is for residents and accompanied guests only; follow posted pond rules. No swimming. Children under 12 must have an adult present.
- **Playground and dog park.** Use at your own risk during daylight hours. Children under 12 must be supervised. Pick up after your dog every time.
- **Laundry room.** Open during posted hours. Remove clothes promptly and leave machines clean.
- **Pets.** Leashed outside your home, never left tied out unattended, and no aggressive animals. Owners pick up all waste.
- **Safety.** No fireworks, open burning, or firearms discharge anywhere in the community. Barbecue grills must be at least 10 feet from any home.
- **Respect.** Harassment, threats, or violence toward any resident, guest, or staff member is a serious breach of the Lease.
- **Questions or problems.** Call the office at (870) 557-5751 or use the community portal.

Resident initials: _____ Date: _____

EXHIBIT B — LEAD-BASED PAINT DISCLOSURE

Required only if the home was built before 1978. Attach the completed EPA “Disclosure of Information on Lead-Based Paint and/or Lead-Based Paint Hazards” form for target housing rentals, signed by the Community and each Resident, and confirm Resident received the EPA pamphlet.

☐ Home built 1978 or later — not applicable. ☐ Pre-1978 — form attached and signed.

EXHIBIT C — MOVE-IN CONDITION CHECKLIST

Attach the completed Hometown Meadows move-in condition checklist and photos, signed by Resident and the community manager at move-in. Resident has 5 days after move-in to note any additional items in writing.